

Court No. - 5

Case :- WRIT - C No. - 13882 of 2020

Petitioner :- Haridwar Yadav

Respondent :- State Of U.P. And 5 Others

Counsel for Petitioner :- Laloo Yadav

Counsel for Respondent :- C.S.C.,Kapil Dev Singh Rathore

Hon'ble Surya Prakash Kesarwani,J.

Hon'ble Jayant Banerji,J.

As prayed by learned counsel for the petitioner, put up as fresh case before the appropriate bench on 21.09.2020.

Order Date :- 16.9.2020

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Respondent :- State Of U.P. And 5 Others

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Hon'ble Surya Prakash Kesarwani,J.

Hon'ble Jayant Banerji,J.

A request on behalf of the petitioner has been made for adjournment on the ground that the petitioner's counsel is not well.

As prayed, put up as a fresh case before the appropriate Bench on **5.10.2020**.

Order Date :- 21.9.2020

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Court No. - 46

Case :- WRIT - C No. - 13882 of 2020

Petitioner :- Haridwar Yadav

Respondent :- State Of U.P. And 5 Others

Counsel for Petitioner :- Laloo Yadav

Counsel for Respondent :- C.S.C.,Kapil Dev Singh Rathore

Hon'ble Naheed Ara Moonis,J.

Hon'ble Vivek Varma,J.

Heard learned counsel for the petitioner and Sri Kapil Dev Singh, learned counsel for the respondents/Electricity Department.

By means of the present writ petition, the petitioner has invoked the extra ordinary jurisdiction of this Court under Article 226 of the Constitution of India with the following prayer:

By means of the present writ petition, the petitioner has invoked the extra ordinary jurisdiction of this Court under Article 226 of the Constitution of India with the following prayer:

1. To issue a writ, order or direction in the nature of certiorari quashing/set aside the recovery citation dated 14.6.2019 issued by the respondent no.4 (contained as Annexure-8) to this writ petition;
2. To issue a writ, order or direction in the nature of mandamus directing respondent nos.5 & 6 for connecting the electricity of the petitioner and not to harass the petitioner in pursuance of recovery notice dated 14.6.2019 issued by respondent no.4.

Learned counsel for the respondents has submitted that the petitioner has an alternative remedy of approaching the appropriate Forum namely, the Executive Engineer under Clause 6.5 of U.P. Electricity Supply Code, 2005.

Under such circumstances, the writ petition is disposed of with a direction that in case such an application is filed within seven days from today before the Executive Engineer under Clause 6.5 of U.P. Electricity Supply Code, 2005, the same shall be decided within 15 days thereafter, after giving due opportunity of hearing to the petitioner.

Order Date :- 5.10.2020

M. Tariq